

15. 9:00 AM CASE NUMBER: N26-0265

CASE NAME: CLAIM OF:VALENTINA VILLANUEVA

*HEARING ON MINOR'S COMPROMISE

FILED BY:

TENTATIVE RULING:

PARTIES TO APPEAR.

16. 9:00 AM CASE NUMBER: N26-0466

CASE NAME: PETITION OF:CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA

HEARING ON PETITION IN RE: PETITION FOR AN ORDER COMPELLING COMPLIANCE WITH SUBPOENA FOR INTERVIEW OF PERSON(S) MOST QUALIFIED

FILED BY: CALIFORNIA CIVIL RIGHTS DEPARTMENT, AN AGENCY OF THE STATE OF CALIFORNIA

TENTATIVE RULING:

This matter was resolved by the Court's Order entered April 28, 2026. The matter is fully dispositioned.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-00713

CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION

*HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER TO STAY ALL DISCOVERY UNTIL 30 DAYS AFTER RESOLUTION OF THE DEMURRER

FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION

TENTATIVE RULING:

See Line 5 above.

18. 9:01 AM CASE NUMBER: C25-01397

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEMAND FOR INSPECTION, COPYING, TESTING, OR SAMPLING OF DOCUMENTS, SET ONE

FILED BY: RODRIGUEZ, ROBERT D.

TENTATIVE RULING:

Parties to appear to address status of assignment to Discovery Facilitator.

19. 9:01 AM CASE NUMBER: C25-01690

CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS TO THIRD PARTY S.G. BANKS, INC.

FILED BY: CITY OF ANTIOCH

TENTATIVE RULING:

Defendant City of Antioch (“Defendant”) filed a motion to compel compliance with deposition subpoena for production of business records (the “Motion to Compel”) to third party S. G. Banks, Inc. (the “Third Party”) on February 6, 2026. The motion was set for hearing on June 29, 2026.

Background

The deposition subpoena was served on the Third Party on November 10, 2025. See Declaration of Harry J. Moren re Motion to Compel Compliance filed February 6, 2026, ¶3 and **Exhibit 2** thereto (including Proof of Service dated November 10, 2025). No responses to the subpoena were received by the filing of the Motion to Compel. *Id.* at ¶4.

Defendant was unable to serve the Third Party and filed an *ex parte* application for service by delivery to the Secretary of State. See Declaration of Harry J. Moren re Ex Parte Application filed May 19, 2026, ¶21-23 and **Exhibits 5, 6, and 7** thereto; Ex Parte Application re Authorization of Service filed May 19, 2026. The application was approved by the Court on May 22, 2026. See Order re Authorizing Service filed May 26, 2026.

Per Defendant, the Secretary of State refused to comply with this order because such service was only authorized for service of process and not as to service for subsequent papers. See Reply re Motion to Compel Compliance filed June 22, 2026 (the “Reply”), ¶3; Declaration of Harry J. Moren re Reply filed June 22, 2026, ¶5 and **Exhibit 6** thereto (including letter from the California Secretary of State dated June 2, 2026).

In the Reply, Defendant requests the hearing on the Motion to Compel be held in abeyance pending service. *Id.* at ¶6.

The Motion to Compel is unopposed.

Analysis

The Court in its discretion will continue the hearing to September 21, 2026, 9:00 am, in Department 34.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby CONTINUED to September 21, 2026, 9:00 am, in Department 34.
2. Defendant to timely serve this motion before the next hearing or else advise the Court if it is withdrawn.
3. Moving party to prepare the order after hearing.

Courtroom Clerk's Session

20. 1:30 PM CASE NUMBER: N25-0829
CASE NAME: DUONG ESTUARY COVE, LLC VS. CONTRA COSTA COUNTY
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:

TENTATIVE RULING:

The Court rules on Petitioner Duong Estuary Cove, LLC's petition for writ of mandate against Contra Costa County as follows:

Background

Petitioner plans to build a housing project with 271 dwelling units in an unincorporated portion of Oakley.

Petitioner submitted a preliminary application on September 25, 2023. (AR 624.) The application stated that it would have 209 market rate units and 62 moderate income units. (AR 626.) It also stated that it was intended to be a builder's remedy project, noting that it would provide 20 percent of its units for lower income households. (AR 633.)

Respondent sent a notice of incomplete application on October 24, 2023, identifying certain information needed for the preliminary application. (AR 695.) Petitioner submitted updated information on October 26, 2023. (AR 742.) Respondent sent a notice of complete preliminary application on November 2, 2023, and attached agency comments on the project. (AR 752.)

The County housing element was not in substantial compliance with the State Housing Element Law for most of 2023. The County adopted a new general plan housing element on December 12, 2023. (Respondent's RJN C and Petitioner's RJN A-3.) The state found that the County was in substantial compliance with the State Housing Element Law on January 22, 2024. (Respondent's RJN D and Petitioner's RJN A-4.)

Petitioner submitted a full application for a subdivision and development plan on April 19, 2024. (AR 988.) Petitioner also responded to the agency comments provided in October 2023. (AR 989.)

Respondent issued a notice of incomplete application on May 17, 2024, listing eleven items that were incomplete. (AR 1595.) The notice also attached additional comments, including an email stating that the Builder's Remedy did not apply because there were not enough below market-rate units. (AR 1631.)

Petitioner resubmitted the planning application, with additional responses on August 22, 2024. (AR 1663, 1665.) In Petitioner's resubmittal letter and accompanying letter by their attorney, Petitioner took the position that there was only one permitted checklist and that the County was requesting items beyond the checklist. Petitioner also took the position that it was providing the